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| 4 | <p><b>Francisco Ramirez Guillen vs. FCA US LLC</b></p> <p><b>2025-01460037</b></p> | <p><b>Motion for Attorney Fees</b></p> <p>Plaintiff J Jesus Francisco Ramirez Guillen’s motion for attorney fees and costs is GRANTED in part and DENIED in part. (Code Civ. Proc., §§ 1032, subd. (b) [prevailing party entitlement to costs generally], 1033.5, subd. (a)(10)(B) [recoverable costs may include attorney fees pursuant to statute]; Civ. Code, § 1794, subd. (d) [prevailing party in Song-Beverly action entitled to reasonable fees/costs].)</p> <p>Plaintiffs is awarded attorney fees in the amount of \$15,833.00, which the court finds were reasonably and necessarily incurred. The court finds that the hourly rates claimed by moving party’s attorneys are reasonable and commensurate with market rates in the Orange County area for comparable work. (<i>PLCM Group, Inc. v. Drexler</i> (2000) 22 Cal.4th 1084, 1095 [reasonable hourly rate “is that prevailing in the community for similar work”]; <i>Syers Properties III, Inc. v. Rankin</i> (2014) 226 Cal.App.4th 691, 700 [“determination of the ‘market rate’ is generally based on the rates prevalent in the community where the court is located”]; <i>Nishiki v. Danko Meredith, APC</i> (2018) 25 Cal.App.5th 883, 899 [“a trial court has its own expertise in the value of legal services performed in a case ... and it may rely on its own familiarity with the local legal market in setting the hourly rate”].)</p> <p>But the paralegal rate claimed appears excessive, absent evidence of paralegal experience and/or qualifications justifying a \$215.00 hourly rate. The court awards paralegal fees at \$150.00 per hour instead.</p> <p>The court has also somewhat reduced the time claimed by moving party’s attorneys for task that appear clerical and/or administrative in nature, as well as time spent by partners for reviewing / revising the motion to compel, which review time appears somewhat excessive despite its somewhat novel nature. (See <i>PLCM Group, Inc. v. Drexler</i> (2000) 22 Cal.4th 1084, 1095 [court’s broad authority to determine reasonable fees]; <i>Serrano v. Unruh</i> (1982) 32 Cal.3d 621, 635, FN 21 [clerical tasks should generally be considered overhead and included in counsel’s hourly rate]; <i>Save Our Uniquely Rural Community Environment v. County of San Bernardino</i> (2015) 235 Cal.App.4th 1179, 1187 [trial court did not abuse discretion in reducing fees billed at partner rates for</p> |
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|   |                                                                                                             | <p>“researching and calendaring all deadlines”].) Otherwise, after review of moving parties’ billing records (Ex. 11 to motion), the court finds the remaining billing entries and time claimed to be reasonably and necessarily incurred.</p> <p>The motion is DENIED as to costs. Moving party has already filed a Memorandum of Costs (Ex. 12 to motion; ROA 51), and no motion to tax was filed. Moving party provides no evidence of costs incurred other than those included in the Memorandum of Costs. (See <i>Smalley v. Subaru of America, Inc.</i> (2022) 87 Cal.App.5th 450, 457 [“In a claim under the Song-Beverly Act ... for purposes of that statute, expenses encompasses out-of-pocket expenses beyond the costs identified in Code of Civil Procedure section 1033.5;” other internal citations omitted.]) To award the same costs for the instant motion as listed in the Memorandum of Costs, would be a double recovery.</p> <p>Moving party shall give notice.</p>                                                                                                                                                                                                                                                                                                                                                                                                                                                   |
| 5 | <p><b>Hoag Memorial Hospital Presbyterian vs. Monarch Health Plan, Inc.</b></p> <p><b>2026-01546114</b></p> | <p><b>Demurrer to First Amended Complaint</b></p> <p>Defendants Monarch Health Plan, Inc., Optum Care Management, LLC and Optum, Inc.’s demurrer to Plaintiff Hoag Memorial Hospital Presbyterian’s First Amended Complaint is SUSTAINED in part. (Code Civ. Proc. §430.10, subd. (e).)</p> <p>The special demurrer for uncertainty is OVERRULED. (Code Civ. Proc. §430.10, subd. (f).) The Court will only sustain a demurrer for uncertainty if it is so poorly drafted that Defendant cannot reasonably respond. (<i>Khoury v. Maly’s of California Inc.</i> (1993) 14 Cal.App.4th 612, 616.) Defendants argue a special demurrer lies because the allegations of the FAC are made against all Defendants collectively. This defect in the pleading does not preclude any Defendant from intelligently responding to the FAC. The allegations of the FAC can be clarified through discovery.</p> <p><u>Third Cause of Action for Quantum Meruit:</u></p> <p>Defendant <b>Monarch Health Plan, Inc.</b>’s demurrer to the <b>Third Cause of Action for Quantum Meruit</b> is <b>OVERRULED</b>. Monarch argues that a cause of action for quantum meruit cannot be stated because the FAC alleges the existence of an enforceable contract. Since this cause of action is pleaded alternative, it may be validly pleaded notwithstanding the allegation of a binding contract between Plaintiff and Monarch. (See <i>Newport Harbor</i></p> |